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Submitter Information

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General Comment

In comparing the Biden administration's executive order -- with its detailed explanations of both what problems specifically it is addressing and what goals it lays out -- to the Trump administration's executive order meant to replace it, it seems immediately clear to me that this new order leaves much to be desired.

1. The policy is extremely broad. American global dominance in AI is the stated goal, and in the body of the order there is no weighing of any ethical concerns that might arise on the way to achieving this goal. The American dominance is stated to be for three purposes which should theoretically guide ethical decisions made, but no explanation is given for how they may be applied, and they are themselves broadly-scoped vagueries.

a. Promoting human flourishing is a noble goal, but there is no explanation of what that is meant to look like nor how AI and specifically American global dominance in AI will bring us closer to this goal. The body concerns itself greatly with removing restrictions on companies developing AI, but it is unclear how this will lead to human flourishing. This all gives the appearance of using lofty words that have no great meaning in context.

b. Economic competitiveness is also undefined though perhaps somewhat more straightforward in conceptualization. It seems clear to me that "economic competitiveness" and "human flourishing" can at times be at odds with one another. There is no guidance given in the order as to how these should be weighed against each other. Instead individuals will have to weigh these as they see fit in the moment, providing no accountability and likely leading to a lack of consistency in implementation. This has all the appearance of passing the buck on down the line.

c. National security is also given no explanation neither in its relevance to AI development nor why America must dominate globally in AI in order to achieve this. The Biden administration's executive order laid out in great detail potential threats to national security and how the administration's policy intended to protect against such threats. Did no one advise President Trump before this policy was drafted? Was no one consulted on the matter to determine how the policy could be used to protect national security? I cannot even speculate because there is nothing in this order to even define the term.

2. The implementation is entirely reactionary against the executive order of the Biden administration. This, on its own, is neutral. Certain individuals are tasked to find and revise or reverse policy actions set forth by the Biden administration that are inconsistent with the new policy. However, as laid out in point 1, the new policy is laid out so broadly and so vaguely that any current policy action could be rationalized to be inconsistent and any new policy recommendation could be rationalized to fit better. The lack of policy guidance in this executive order authorizes individuals to act in nearly whatever way they please with no explicit oversight. With the Biden administration's executive order, actions carried out could be compared to the excruciating detail of the policy to determine compliance. There is no such option here.

In summary, the Biden administration's executive order was revoked by the Trump administration's order 14148 along with over 70 other independent and unrelated Biden administration orders, and no matter how greatly the Trump administration may disagree with the previous administration's order, this new executive order is so large a step down as to be unconscionable. More care must be given to the writing of policy so as to give actual direction and guidance. Given the lack of direction here, all interpretations of policy must necessarily be determined by those enacting the order. Indeed it appears that enactors could very nearly justify any action they desired to take under these terms. There is nothing that can justify going forward with such a poorly defined policy as this.

